IN THE DISTRICT COURT HELD AT SEGE ON MONDAY, THE 19TH DAY OF JUNE, 2025. BEFORE HER WORSHIPVICTORIA AKUA GHANSAH ESQ. AS MAGISTRATE.

CC: GR/SG/DC/B7/21/2025

THE REPUBLIC

VRS

ADJUMANI AYIKU

JUDGMENT

The accused person herein was charged with and arraigned before this court on stealing contrary to section 124 (1) of the criminal offences act 1960 (ACT 29).

The Accused person upon his arraignment before this court denied the charge against him by pleading not guilty to the charge. The legal implication of this plea is that the prosecution now assumes the burden of proving the guilt of the accused persons on the count against him beyond reasonable doubt as the standard in all criminal proceedings of this nature.

This is because under Article 19 (2) (c) of the 1992 Constitution, a presumption of innocence has been created in favor of the Accused upon pleading not guilty as follows;

Article 19 (2) (c) ***"A person charged with a criminal offence shall…. Be presumed innocent until he is proved or has pleaded guilty."***

The cardinal rule in all criminal proceedings is that, the burden of establishing the guilt of the accused person is on the prosecution; and the standard of proof required by the prosecution should be proof beyond reasonable doubt.

The Evidence ***Act, 1975 (NRCD 323),*** formulates this proposition under ***sections 11(2) and 13 (2)*** as follows;

> *"In criminal action, the burden of producing evidence when it is on the prosecution as to any facts which is essential to guilt, requires the prosecution to produce sufficient evidence on all the evidence a reasonable mind could find the existence of facts beyond reasonable doubt"*
>
> *"13(2) in any civil or criminal action the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyond reasonable doubt."*
>
> *"unless it is shifted, the party claiming that a person has committed a crime or wrongdoing has the burden of persuasion on that issue" as per section 15 of the Evidence Act 1975, NRCD 323.*

In the case of Donkor v The State **[1964] GLR 598, SC.** It was held inter alia by the Supreme Court of Ghana that in criminal trials, the burden of proof in the sense of the burden of establishing the guilt of the accused is generally on the prosecution or The Republic.

B. <u>THE BRIEF FACTS</u>

The complainant in this case is the Supervisor of Golden Milan Company in Dawa Industrial Zone/Dawa while the accused is a dismissed employee of same company. On 15th October, 2024, the victim Ezekiel Adiko (currently sick) kept cash Four thousand, six hundred and thirty Ghana Cedis (GH¢4,630.00) in a bag in the company room he shares with the accused person and went to work. On his return home after close of work, the victim could not find the money as well as the accused person even in the town. Then the accused person became

highly suspected to have stolen the money and bolted. The victim reported the matter to the complainant's Supervisor to that effect for a redress. Then all started looking for the accused person everywhere. On 19th November, 2024, the complainant was reliably informed that the accused person was spotted at Sege. Then by the assistance of the witnesses, the accused person was arrested and handed over to the Police/Dawa for investigation. Upon heavy interrogations at the charge office, the accused person admitted the offence and told Police that he had squandered the money. During investigations, the accused person admitted the offence in his investigation cautioned statement. After investigations, the accused person was charged with the offence.

Prosecution in proving their case called three (3) witnesses including the investigator. The witnesses testified per their witness statements filed.

PW1 is Robert Akakpo, a Supervisor of Golden Milan Company.

He confirmed the facts to the police in his witness statement and added that he informed other employees who live at Sege to be on the lookout for suspect Ayiku and contact management when seen. On 29/11/2024 at about 10:00pm, one Richmond called on phone that the suspect was spotted in Sege and they arrested him. All these while victim Ezekiel was currently incapacitated due to chronic knee wound and could not give his statement to the Police. PW1 made a report on his behalf to the police. Accused admitted to stealing the money.

PW2 is Tetteh Wayo, an employee of Golden Milan Company/Dawa.

According to PW2 victim Ezekiel and suspect Ayiku used to share one room with others. He remembered vividly on 18/10/2024, he and Accused returned to the company house from night shift and met the absence of the victim who was scheduled for morning shift and believed to have already departed for work. He left for home at Ada leaving the suspect alone in the room. Shortly, victim who had closed from work and arrived in the company house called him on phone and informed him of having detected his stolen money. That

upon inspections, he realized that the accused's belongings were not in the room which made him believe that he stole the cash and bolted. All effort made to trace Accused failed. On 30/11/2024, he heard the suspect has been arrested at Sege and handed over to Dawa Police.

PW3 is No. 56011 D/L/CPL Ernest Owusu Ansah, a Police officer stationed at Dawa Police Station CID.

On 29/11/2024, a case of stealing involving the Accused was referred to for investigations. He obtained statement from the complainant Robert Akakpa and Michael Tetteh Wayo. He mentioned one Ezekiel Adiko as the owner of the lost money. PW1 kept cash the sum of four thousand six hundred and thirty Ghana Cedis (GH¢4,630.00) in his bag in the company room he shares with the accused person and went to work. On victim's return, he could not find the money as well as the accused person even in the town.

He took investigation cautioned statement from the accused which he admitted the offence and told police that he bought cloths, smart phone out of the stolen cash and squandered the rest but claimed the phone had been stolen.

BY ACCUSED

Accused in his defence stated that he worked with Golden Milan Company and his job description was to pack Profile. When he started the work, he stayed in the house and go to work. It came to a time the company gave him place in the company house. He was not alone in the room. He met other people in room. He later decided to stop the work because he was not happy with the work.

Accused stated further that, he went to work in the evening and left the company the following morning without informing anybody because his mother called him to come that

was why he did not inform anybody nor the supervisor. After leaving he went to stay with his Aunt at Sege.

Accused was arrested and sent to the Dawa Police Station. When they were beating him, he told them he will tell them the truth so that they will stop beating him. At the Police station, he told the investigator he does not know anything about the money but because they were beating him continuously that he said he took the money. He also told them that he used part of the money to buy cloths and part to buy mobile phone.

CROSS-EXAMINATION OF THE ACCUSED PERSON BY PROSECUTION.

Q. In your evidence before the Court, you said you were staying in a room with some people. Can you mention their names.

A. I know their face not their names.

Q. How long did you work with the company.

A. Less than a month.

Q. Do you know Ezekiel.

A. No.

BY COURT

Prosecution pointed to Ezekiel in the Court room. Accused confirmed he knows Ezekiel at the site but does not know his name.

Q. This same Ezekiel and Michael Tettehwayo you stayed in the same company room.

A. That is so. We are about eleven (11) in the room.

Q. I am putting it to you that Ezekiel is the owner of the money you stole.

A. I did not steal Ezekiel's money.

Q. Can you tell the Court why you left the Company without telling anyone anything.

A. My mother called me to come. I did not inform anyone.

Q. Can you tell the Court why you left the room without informing anybody.

A. They left for work before I left the room.

Q. Without informing any of the room-mates if anything gets missing you will be the suspect.

A. We were more than three (3) in a room. Those of us who went for night shift were still in the room when my mother called me. The place was a Chamber and a Hall so I left immediately.

Q. So at the time you left there were other people in the same room.

A. That is so

Q. Mention one name of those you left behind.

A. I don't know their names.

Q. Why did you come to your Aunt instead of your mother who called you from the company house.

A. I did not go straight to my mother but my Aunty for a long time I had not seen my Aunt. She had travelled. So I came to stay with her in Sege for three (3) days before going to see my mother.

Q. You said the CID used a cane to assault you before he took your statement.

A. That is so. I thought caning was part of his job.

Q. I am putting it to you that the investigator never caned you.

A. He caned me.

Q. At the time he was taking your statement who was there.

A. A certain man was.

Q. Where those who arrested you at the time CID was taken your statement.

A. Yes.

Q. The man present when your statement was taken, the statement was explained in English to you in Dangme.

A. That is so.

Q. In your cautioned statement you stated that you stole the money and immediately packed your things and left to Sege.

A. The Investigator asked me, where was the stolen money. I told him I used the money to buy footwear, cloths and phone.

Q. In the same cautioned statement, you said that you spent the stolen case on male cloths, GH¢1, 500.00 on Smart Phone which was stolen and you squandered the rest.

A. That was what I told the CID.

Before I proceed to discuss the evidence before me, the court would like to consider the cautioned statement which was admitted during the case management conference. Even though the accused did not object to the investigative cautioned statement by prosecution during the case management stage in his oral evidence and during cross examination accused indicated to the court that he gave the statement under duress because the investigator (PW3) assaulted him by caning which made him confess to committing the offence. This made the court to probe further as to whether his cautioned statement was

obtained under duress. In doing so the Accused must show that he was under an immediate threat of serious bodily harm and had a belief the threat would be carried out.

Q. In your cautioned statement you stated that you stole the money and immediately packed your things and left to Sege.

A. The Investigator asked me, where was the stolen money. I told him I used the money to buy footwear and cloths and phone.

Q. In the same cautioned statement, you admitted that you spent the stolen case on male cloths, GH1, 500.00 on Smart Phone which was stolen and you squandered the rest.

A. That was what I told the CID.

In the case of Agogrobisah v The Republic (1995-96) GLR 557, Acquah JA (as he then was), held inter alia thus;

> ***"I concede that a free and voluntary confession of guilt by an Accused, whether in court or outside the courtroom, if it is direct and positive, and is duly made and satisfactorily proved is sufficient to warrant a conviction without any corroborative evidence…".*** See also the case of ***Ayobi v The Republic (1992-93) 2 GBR 769 at 777, CA, per Amuah JA (as he then was).***

In the case of ***Tiduri v The Republic (1991) 1 GLR 209,*** it was held inter alia that the trial magistrate was right in placing reliance on the cautioned statement of the accused and he could even have convicted him solely on the statement as the statement which was admissible was tendered as part of the prosecution's case without any objection.

The court was mindful that the cautioned statement could have been taken under duress however, the admission by accused that he used some of the money to buy male cloths, a mobile phone which was stolen amounts to a confession statement which was voluntarily

given by the accused. The accused confessed to spending the rest of the money. Giving specifics as to how the money was spent by the accused was voluntary.

The court is convinced that the investigative Cautioned statement taken from the accused was a confession statement not one taken under duress.

Nonetheless, it has been held in the case of ***State v Owusu and Another (1967) GLR 114***, that an extrajudicial confession by an accused that a crime had been committed by him did not necessarily absolve the prosecution of its duty to establish that the crime had actually been committed by the accused and that it was desirable for the prosecution to have, outside of the confession statement, be it slight, circumstances which made it probable that the confession was true.

> ***The explanation given in the commentary to section 11 (4) of the Evidence Act in respect of the burden of producing evidence appears to entitle the prosecution to benefit from the statements of the accused person in discharging the legal burden of proving the guilt of the accused person beyond reasonable doubt;***
>
> ***"A party with the burden of producing evidence is entitled to rely on all the evidence in the case and need not rest entirely on evidence introduced by him. The party with the burden of producing evidence on the issue may point to evidence introduced by another party which meets or helps the test of sufficiency. It is for this reason that the phrase "on all the evidence" is included in each of the tests of sufficiency".***

Ostensibly mindful of that, the prosecution adduced some circumstantial evidence to support the probability of the commission of the offences by the accused persons, and even beside the testimonies of the PW1, PW2 and PW3 above.

Specifically, from the evidence of Accused the mobile phone was stolen with his Sim Card. These were pieces of evidence that corroborated the circumstances within which the PW1

and PW2 have testified to the fact that when accused stole the money from the bag of PW3 he left the room until he was arrested.

I will now turn my attention to the evidence before the court whether prosecution proved their case beyond reasonable doubt to establish the guilt of accused.

By **Section 124(1),** a person who steals commits a second degree felony. By definition, **Section 125** provides that, a person steals if he dishonestly appropriates a thing of which he is not the owner. The *actus reus* is the appropriation of a thing and the *mens rea* is the dishonesty with which the thing was appropriated.

In the case of **AMPAH v THE REPUBLIC** the court held that, to establish these elements, the prosecution must prove three requirements, namely:

1. that the accused is not the owner of the thing allegedly stolen
2. that the accused appropriated the thing alleged to have been stolen, and
3. that the appropriation was dishonest.

Dishonest appropriation is defined in Section 120 (1) (b) of Act 29. In **Osei Kwadwo II v The Republic,** the court held **i**n a charge of stealing; it must be proved by the prosecution that the accused dishonestly appropriated the stolen item. She further held that dishonest;

Appropriation is when one has an intention to deprive the owner of the use and enjoyment of his thing. Appropriation is not necessarily permanent. The accused must have appropriated the thing alleged to have been stolen. This is governed by **Section 122 of Act 29.** By **Section 122 (2),** appropriation of a thing means the taking, moving, obtaining, carrying away, or dealing with the thing with the intention of depriving the owner of;

- the benefit of his ownership, or
- the benefit of his right or interest in the thing, or
- in its value or proceeds, or
- any part thereof.

In a charge of stealing the court in LUCIEN v THE REPUBLIC held; the accused must not be the owner of the thing allegedly stolen. There is no requirement that the prosecution should prove who actually owns the thing allegedly stolen.

According to **Section 123 (3) of ACT 29** all that is needed is for the prosecution to show that the accused is not the owner of the thing allegedly stolen.

BREMPONG II v THE REPUBLIC the court held that; in a charge of stealing, it must be proved by the prosecution that the accused dishonestly appropriated the stolen item. She further held that, dishonest appropriation must be done with intent to defraud and also, a defence of claim of right can validly negative the claim.

The accused had knowledge of the true owner of the money he took from the room hence his unceremonious departure from the company house without informing any of the other workers. Indeed his conduct lacks credibility and therefore weakened his defence. The Accused stated he had used the complainant's money to buy specific items and even went ahead to add that he has spent the rest of the money both in his cautioned statement and his evidence before the court.

The court is of the view that Prosecution proved the guilt of Accused beyond reasonable doubt. The Accused is convicted by the court.

MITIGATION

Accused pleaded with court for leniency. Counsel added to the mitigation of Accused by pleading with the court to deal leniently with Accused as a young person who has shown remorse.

BY COURT

Accused is sentenced to pay a fine of 100 penalty units in default serve 6 months prison terms in addition to sign a bond to be of good behavior for 12 months in default serve 12 months in prison terms.

(SGD) VICTORIA A. GHANSAH

(MAGISTRATE)